

Judgment Sheet
IN THE LAHORE HIGH COURT
MULTAN BENCH MULTAN
Judicial Department

W.P.No.11598/2012

Mukhtar Hussain versus TEVTA, etc.

JUDGMENT

Date of hearing: 09.03.2018
Petitioner by: Mr. Asghar Ali, Advocate.
Respondents by: Malik Muhammad Amjad Mushtaq, Advocate.
Miss Aisha Rehman, District Manager TEVTA and
Muhammad Hanif, Principal G-TTI (M), Kabirwala,
in person.

MUZAMIL AKHTAR SHABIR, J: This single judgment shall dispose of the titled constitutional petition alongwith two connected constitutional petitions i.e. W.P.No.11600/2012 titled “Shahzad Naeem v. TEVTA, etc.” and W.P.No.9916/2012 titled “Sohail Sarwar v. TEVTA, etc.” as common question of fact and law is involved.

2. The brief facts of the case are that the petitioners in the titled petition (W.P.No.11598/2012) and in the connected petition (W.P. No.11600/2012) who were respectively appointed as Teacher of Tractor Mechanical Course and Teacher of Certificate of HVACR course in Government Technical Training Center (GTTC), Kabirwala, respectively, have made the following identical prayer:

“In view of the above submissions, it is most respectfully prayed that by accepting this writ petition, the action of respondents about threatening the petitioner to terminate the services of petitioner may kindly declare to be without lawful authority. It is also prayed that the official respondents be restrained to pass any order of termination.

It is also prayed that the official respondents be directed to further extend the period and to regularize the services of the petitioner as well as to pay the petitioner according to BS-11 as per advertisement.”

3. Whereas the petitioner in W.P.No.9916/2012 who was appointed as electrician in Government Technical Training Center (GTTC), Kabirwala has made prayer as under:

"In view of the above submissions, it is most respectfully prayed that by accepting this writ petition, the impugned order dated 25.7.2012 may kindly be declared to be without lawful authority and of no legal effect. The operation of the impugned order may also be stayed in the meanwhile.

It is also prayed that the official respondents be directed to regularize the services of the petitioner as well as to pay the petitioner according to BS-11 as per advertisement."

4. All the afore-referred petitioners seek regularization of their services in BS-11 as per advertisement against which they were appointed.

5. Comments were called for, in which it has been mentioned by the respondents that the petitioners were hired on daily wages as visiting faculty on the basis of per hour remuneration at different rates and had not got vested right in their favour for regularization of their services. Besides, the petitioners had not been appointed against regular posts and their services were likely to be terminated at any time, even otherwise, the petitioners were contract employees and their contract could be extended from time to time, thus, they are not entitled to be regularized. It has been argued by the learned counsel for respondents that petitioners had been engaged by the respondents-Department as visiting faculty for teaching certain courses and the post was not permanent in nature; besides, the manager who had appointed the petitioners in service was not duly authorized to appoint them as the legal procedure had not been followed.

6. The learned counsel for petitioner has argued that the petitioners were appointed on work-charge basis against permanent post after following due process and after having completed initial period of service, they are entitled to be regularized. He has placed

reliance on Province of Punjab through Secretary Communication and Works Department and others v. Ahmad Hussain (2013 SCMR 1547) in support of his version.

7. Arguments **heard**. Record perused.

8. From the perusal of appointment letters issued to petitioners, it is seen that petitioners' services were hired as a result of an advertisement issued by the respondent-Technical Education and Vocational Training Authority (TEVTA) by mentioning therein that all the appointments are on contract basis and institutes based. The afore-referred advertisement did not find mentioned that the posts against which the appointment of the petitioners had been made were on regular basis or likely to be regularized. Whereas the afore-referred advertisement shows that the TEVTA is an autonomous corporate body of Government of the Punjab, established to manage and improve the Technical Vocational and Commercial Education in consultation with Industry, Agriculture and Commerce and is in the process of restructuring 456 institutes spread all over Punjab for which services of suitably qualified and competent persons domiciled in Punjab, with initiative, drive and dedication to fill up the challenging positions in Govt. Technical Training Centre Kabirwala, District Khanewal are required, in which the posts occupied by the present petitioners in column No.03 mentioned as Trade Instructor HVACR (BS-11) Pay Scale 6000-250-9750 were required for the subject of HVACR Tractor Mechanic Electrician of one in number. However, the appointment letter issued to the petitioner in W.P.No.11598/2012 provided that the petitioner's services were hired as visiting faculty to teach Tractor Mechanic Course at Government Technical Training Centre Kabirwala for the period of one month w.e.f. 28.08.2012 Remuneration will be Rs.140/- per teaching hour and in case the petitioner is appointed on permanent basis, his services may be terminated without any notice. The said appointment extended from time to time for 89-days for remuneration at the rate of Rs.100/- per teaching hour which was enhanced to Rs.140/- per teaching hour. However, successive letters

extended the contract of petitioner wherein it was provided that petitioner was being appointed as visiting faculty. Same was the position in W.P.No.11600/2012 in which the petitioner was initially appointed on daily wages on working hour basis at the rate of Rs.77/- per Teaching hour, however, subsequently the petitioner was appointed as visiting faculty for the afore-referred post.

9. The petitioner in W.P.No.9916/2012 was appointed to teach electrician course initially for 89-days at the rate of Rs.100/- per Teaching hour which was subsequently increased at Rs.140/- and Rs.150/- per Teaching hour. However, his letter of appointment was initially provided for daily wages but subsequently the petitioner was appointed as visiting faculty for the afore-referred post.

10. It has been stated that TEVTA manages short courses for which it requires visiting faculty and permanent teachers and for the said purpose, separate remuneration was fixed by the respondents on the basis of per teaching hour/working hour. However, the petitioner in W.P.No.9916/2012 was terminated vide order dated 25.7.2012 and no further order was passed for extension of his services. The petitioner in these connected petitions have approached this Court for regularization of their services. Admittedly, the petitioners have been appointed initially on daily wages and subsequently as visiting faculty teacher and remuneration was fixed on the basis of per hour. They were not engaged in service on regular pay or monthly pay, as they were to be paid against the lectures delivered by them. It is the claim of petitioners that they be appointed on permanent basis but it has not been shown that the afore-referred post is on permanent in nature. Besides, the petitioners are contract employees appointed on the basis of contracts that were extended time to time. The respondents state that services of the petitioners are no longer required and were not regularized in service. On the other hand, the learned counsel for petitioners has placed on record document showing that all other employees of the respondents-department except the petitioners had been regularized in service, therefore, the

petitioner are entitled to the same benefit in the same terms. However, to the said argument, the respondents had responded that other employees were appointed against permanent posts and have been regularized whereas the post of petitioners are not of permanent nature. The petitioners have failed to establish that they were working against permanent posts, besides they have not been able to establish the case of discrimination as the respondents have regularized the services of the employees who had been working against permanent posts and the petitioners have only been appointed as visiting faculty for delivering lectures against payment on lecture to lecture basis.

11. The contract employee or visiting faculty member is not entitled to be regularized into service in contravention of his letter of appointment. Even the advertisement relied upon by the petitioners mentioned above does not mention that the contract would be extended or their services would be regularized. The facts of the case reported as Province of Punjab through Secretary Communication and Works Department and others v. Ahmad Hussain (2013 SCMR 1547) are distinguished as the petitioners were not appointed as work-charge employees against regular posts and were working as visiting faculty on contract and contract employees can at the most seek remedy of damages or compensation of unexpired period of their appointment but the contract employee is not entitled to claim regularization of service. Reliance in this regard has been placed on Federation of Pakistan through Secretary Law, Justice and Parliamentary Affairs v. Muhammad Azam Chattha (2013 SCMR 120) wherein it has been opined as under:

“The question is that a person whose fate has been so determined, though he was a contract employee, had no legal entitlement to continue in contract employment because subject to holding him entitled to draw salary in lieu of the notice period he could not have agitated the matter in any manner. In addition to it, it is a cardinal principle of law that a contract employee instead of pressing for his reinstatement to serve for the leftover period can at best claim damages to the extent of unexpired period of his service.”

12. Therefore, the principle of Province of Punjab through Secretary Communication and Works Department's case (supra) is not applicable to the facts of the present case especially in the circumstances that they were working as visiting faculty members and not against any permanent posts.

13. Solely the ground that they were regularly performing their duty without any break does not entitle them to be treated as regular employees against permanent posts and hence their claim for regularization of their services is not made out.

14. Even otherwise, the petitioners seek a relief that would change their basic terms and conditions of service which is not permissible in the eye of law because this Court in its Constitutional jurisdiction cannot alter the terms and conditions of service of the employees and could not renegotiate, alter and amend terms of regularization that were offered by the authorities to its other employees. Reliance is placed on Chairman NADRA, Islamabad through Chairman, Islamabad and another v. Muhammad Ali Shah and others (2017 SCMR 1979).

15. For what has been discussed above, the titled petition (W.P.No.11598/2012) and the connected two petitions (W.P. No.11600/2012 & W.P.No.9916/2012) being devoid of merit are **dismissed**.

(MUZAMIL AKHTAR SHABIR)
JUDGE

KMSubhani

Announced in open Court on 03.05.2018.

(MUZAMIL AKHTAR SHABIR)
JUDGE

KMSubhani